

Yogeshwar Singh v. State of U.P. (through Secretary) and others

High Court of Judicature at Allahabad · Division Bench · 5 February 2016 · WRIT - C No. - 67932 of 2012 · **Writ dismissed with liberty to seek Supply Code clause 6.5.**

HEADNOTE

Writ to quash an electricity recovery citation and to have the bill decided in light of a Permanent Lok Adalat order dismissed. Following Anis Ahmad, the consumer's remedy for disputed bills is clause 6.5 of the Electricity Supply Code, 2005; Permanent Lok Adalat proceedings are without jurisdiction.

FACTUAL SUMMARY

Yogeshwar Singh petitioned the Allahabad High Court to quash a recovery citation dated 24 September 2011 issued by the Executive Engineer and to direct that officer to decide his claim on the quantum of the electricity consumption bill in the light of an order dated 6 November 2012 of the Isthai Lok Adalat in P.L.A. Case No. 48 of 2012. After listings in December 2012 and January 2013, including time granted to the respondents to obtain instructions, the Division Bench disposed of the writ on 5 February 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — Permanent Lok Adalat / clause 6.5

HOLDING

A consumer not satisfied with the correctness of electricity bills must seek remedy under clause 6.5 of the Electricity Supply Code, 2005. Following U.P. Power Corporation Ltd. v. Anis Ahmad, the consumer's remedy lies within the Supply Code and the Electricity Act; proceedings before the Permanent Lok Adalat are without jurisdiction. The writ to quash a recovery citation and to decide the claim in light of a Permanent Lok Adalat order is dismissed with that liberty.

¶ 2-4

FLAG The Court referred to the Electricity Act, 2005; the statute is the Electricity Act, 2003.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY CONSUMPTION BILLS AND VALIDITY OF THE RECOVERY CITATION DATED 24.9.2011

Merits of the bill and citation were not examined; the petitioner was left to clause 6.5. ¶ 3-4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>U.P. Power Corporation Ltd. v. Anis Ahmad</i> (2013) 8 SCC 491			2	Referred